
8:30 a.m. Law and Motion

BOONE VS. GALVAN, ET AL.

CASE NUMBER: 24CV-0205681

An Order to Show Cause Re: Dismissal (“OSC”) issued on July 20, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff and Counsel, for failure to serve and failure to obtain default judgment pursuant to CRC 3.110(b) and (h). No response to the OSC has been filed. Sanctions have been imposed previously on several occasions and have not been paid. This matter has been continued multiple times to permit Plaintiff to cure the defects. Despite the imposition of sanctions and multiple continuances, Plaintiff has failed to move the case forward. It appears no lesser sanctions would be effective to prompt compliance with the rules of court. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

DOTSON VS. COUNTY OF SHASTA, ET AL.

CASE NUMBER: 26CV-0210377

Tentative Ruling on Demurrer: Defendants demur to each cause of action on the grounds that the Complaint fails to allege facts sufficient to constitute a cause of action against defendants under CCP 430.10(e). The demurrer is properly noticed and unopposed.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Renee Belcastro establishes good faith attempts at compliance with the meet and confer requirements.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Plaintiff’s Complaint alleges six causes of action: 1) 42 USC § 1983; 2) 42 USC § 12132; 3) Gov. Code § 815.6; 4) Dependent Adult Abuse WIC § 15610.23; 5) Retaliation 42 USC § 1983; 6) Intentional Infliction of Emotional Distress. Each cause of action simply recites some or all of the elements which must be pled to state a claim, but does not plead any facts in support of each element. This is insufficient to state a claim against any of the Defendants.

42 USC § 1983: To state a claim under this section, Plaintiff must plead deprivation of a federal right, by a person acting under color of state law. “The United States Supreme Court has carved out a limited area of direct municipal responsibility “if the deprivation of rights was caused by an official policy or custom of the county, set by the county’s lawmakers or by an official who speaks

with final policymaking authority for the county.” *Choate v. County of Orange* (2000) 86 Cal.App.4th 312, 328. The Complaint alleges “Plaintiff possessed protected property interests in public benefits. Defendant deprived Plaintiff of those interests...” Plaintiff does not identify any federal right. Plaintiff does not plead any facts at all in support of the allegation that he was deprived of a federal right. The cause of action simply recites the elements without any supporting factual allegations. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

ADA Title II - 42 USC § 12132: “In order to prove a claim for discrimination under title II of the ADA, a plaintiff must show: (1) that he is a qualified individual with a disability; (2) he was either excluded from participation in or denied the benefits of a public entity's programs, benefits or services; and (3) the public entity's conduct occurred by reason of his disability. (42 U.S.C. § 12132).” *Black v. Department of Mental Health* (2000) 83 Cal.App.4th 739, 749. Again, the Complaint states these elements without alleging any facts. Plaintiff does not identify what benefits he was denied. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

Gov. Code § 815.6: This section provides “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” The Complaint alleges “Defendants were subject to mandatory duties imposed by statute and regulation governing eligibility determinations, fair hearing procedures, and maintenance of accurate beneficiary records.” The pleading does not identify any statute which imposes a duty. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

Dependent Adult Abuse: To establish a basic claim for abuse of a dependent adult, a plaintiff must show that the victim was a dependent adult and was subjected to “abuse.” Cal Wel & Inst Code § 15610.07, *Nichols v. Alghannam*, 118 Cal. App. 5th 726. Statutory abuse includes physical abuse, neglect, abandonment, isolation, abduction, or other treatment resulting in physical harm, pain, or mental suffering. Cal Wel & Inst Code § 15610.07. It also encompasses financial abuse or the deprivation of necessary goods or services by a care custodian to avoid physical harm or mental suffering. Cal Wel & Inst Code § 15610.07. A custodial or caretaking relationship is an absolute prerequisite; the Act does not apply to casual or limited interactions. *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal. 4th 148. The Complaint alleges “Governmental records reflect repeated reports concerning Plaintiff’s vulnerability, behavioral health status and allegations of abuse.” The Complaint does not provide any further factual allegations or detail. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

Retaliation - 42 USC § 1983/ADA: The same requirements apply as discussed with respect to the First Cause of Action. Again, the Complaint alleges Plaintiff engaged in protected activity but does not specify what that protected activity is. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to

amend for failure to state facts sufficient to constitute a cause of action.

Intentional Infliction of Emotional Distress: To state a claim, Plaintiff must plead extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; the plaintiff's suffering of severe or extreme emotional distress; and actual and proximate causation of the emotional distress by the defendant's outrageous conduct. *Christensen v. Superior Court* (1991) 54 Cal. 3d 868. Again, the Complaint only makes the bare allegation that "Defendants' conduct was extreme and outrageous." No facts regarding any particular conduct are alleged. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

The Demurrer is **SUSTAINED** with leave to amend as detailed above. Plaintiff is granted 15 days leave to amend from notice of entry of order. The proposed order will be modified.

LAURENCE VS. HOLT OF CALIFORNIA

CASE NUMBER: 25CV-0207217

Tentative Ruling on Motion to Compel Further Responses to Discovery: Plaintiff moves to compel Defendant to provide further responses and production of documents to Requests for Production of Documents, Set Two Nos. 19, 23, 25-29, and 32. Defendant opposes the motion.

On receipt of a response to a demand for inspection or to interrogatories, a propounding party may move for an order compelling further responses if the responses are inadequate. CCP §§ 2031.310(a), 2030.300(a). A motion to compel further responses for production must show "good cause" for the request. CCP § 2031.310(b)(1). The motion must be accompanied by a meet and confer declaration under Section 2016.040. CCP §§ 2030.300(b) and 2031.310(b). The Declaration of May T. To establishes compliance with the meet and confer requirements.

RPD 19 – Documents relating to communications between Holt and Aggrieved Employees ("AEs") relating to this action. The Motion does not address this RPD. No evidence or argument establishing good cause is presented as required by CCP 2031.310(b)(1). The Separate Statement states only that Plaintiff believes the documents are reasonably calculated to lead to the discovery of admissible evidence, but does not explain why and does not "set forth specific facts showing good cause justifying the discovery sought by the demand." CCP 2031.310(b)(1). Therefore, Plaintiff has failed to carry its burden to establish good cause for further responses. No further production is ordered.

RFD 23 – All GPS data of Holt's company vehicles driven by AEs for work purposes during the relevant time period. Defendant objects on several grounds including that the data is cumulative and not relevant, that *Belaire-West* notice is required, that the request is unduly burdensome, that the documents are not kept in the ordinary course of business, and that Defendant does not own, control, or have custody of the records.

Defendant argues that AEs must receive notice and opportunity to opt-out through the *Belaire-West* notice procedure. Defendants argue that the protective order and redaction of identifying information is insufficient, because employee IDs already produced to Plaintiff could be used to cross-reference the de-identified information.